



CHAPTER cxxxix.

An Act to extend the limits of supply of the Leighton Buzzard Gas Company to authorise the Company to raise additional capital and for other purposes.

[7th August 1914.]

WHEREAS by the Leighton Buzzard Gas Act 1891 the Leighton Buzzard Gas and Coke Company (incorporated under the Joint Stock Companies Act 1856) were dissolved and the proprietors therein were re-incorporated by the name of "The Leighton Buzzard Gas Company" (herein-after referred to as "the Company") and were empowered to supply gas within certain limits of supply comprising the parish of Leighton Buzzard the hamlet of Heath and Reach in the county of Bedford and the parish of Linslade in the county of Buckingham :

And whereas there are certain parishes and places adjoining or in the vicinity of the existing limits of supply of the Company which are not now supplied with gas and it would be of public and local advantage that the Company should be authorised to supply gas within the parishes and places in the counties of Bedford and Buckingham herein-after mentioned :

And whereas by the said Act of 1891 (herein-after referred to as "the Act of 1891") the capital of the Company was defined and authorised to consist of £12,106 10s. original capital and £15,000 additional capital :

And whereas it is provided by the Act of 1891 that except as by that Act prescribed the Company shall not in respect of any one year make out of their profits any larger dividend on the original capital than ten pounds and on the additional capital by that Act authorised than seven pounds in respect

A.D. 1914. — of every one hundred pounds actually paid up of such capital as should be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of such capital as should be issued as preference capital:

And whereas the whole of the said original capital has been raised by the creation and issue of £12,106 10s. original stock and the Company have raised (including premiums) the sum of £13,001 8s. by the creation and issue of £9,750 new ordinary stock part of the said additional capital:

And whereas the Company have under the Act of 1891 power to raise a further sum of £1,998 12s.:

And whereas the Company are authorised by the Act of 1891 to borrow on mortgage of their undertaking in respect of the said original capital any sums not exceeding in the whole three thousand pounds and in respect of the said additional capital any sum or sums not exceeding in the whole one-fourth part of the amount thereof at the time actually issued by shares or stock:

And whereas the Company have not exercised any of their said powers of borrowing under the Act of 1891:

And whereas it is expedient that provision should be made as in this Act contained for the conversion and consolidation of the original stock and of the new ordinary stock of the Company into one stock bearing a uniform rate of dividend of five pounds per centum per annum subject to increase or reduction as in this Act provided:

And whereas the demand for the supply of gas within the existing limits of supply of the Company is increasing and with a view to meeting such demand and making the necessary provisions for the supply of gas within the extended limits of the Company and for the other purposes of this Act and the general purposes of the Company it is expedient that the Company should be authorised to raise additional capital as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be made:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent

Majesty by and with the advice and consent of the Lords A.D. 1914.
Spiritual and Temporal and Commons in this present Parliament
assembled and by the authority of the same as follows (that is
to say):—

1. This Act may be cited as the Leighton Buzzard Gas Short title.
Act 1914.

2. The Gasworks Clauses Act 1847 as amended by the Incorporation of Gas-
Gasworks Clauses Act 1871 is hereby incorporated with this Act works
so far as the provisions thereof are applicable for the purposes Clauses Act
and are not inconsistent with or varied by the provisions of 1847.
this Act:

Provided that—

(A) Section 13 of the said Gasworks Clauses Act 1847 in
its application to the Company shall be read as if
the words “or any premises” were inserted after
the words “private building” and as if the words
“ Provided also that every such contract entered
“ into by the Company shall be alike in terms
“ and amount under like circumstances to all
“ consumers ” were added at the end of that
section :

(B) Notwithstanding anything contained in the Gasworks
Clauses Act 1871 the provisions of sections 128
to 132 (both inclusive) of the Lands Clauses Con-
solidation Act 1845 shall not apply to any lands
acquired by the Company by agreement.

3. The provisions of the Companies Clauses Consolidation Application
Act 1845 with respect to the following matters (that is of certain
to say):— provisions of
Companies
Clauses
Acts.

The distribution of the capital of the Company into shares;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing
the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the
shareholders ;

The borrowing of money by the Company on mortgage
or bond ;

The consolidation of the shares into stock ;

A.D. 1914.

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts shall so far as the same are respectively applicable and except so far as the same may be varied by or be inconsistent with the provisions of this Act extend and apply to the Company in respect of the additional capital which they are by this Act authorised to raise.

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

The expression “ the Company ” means the Leighton Buzzard Gas Company ;

The expression “ the existing limits of supply ” means the limits of the Company for the supply of gas as defined by the Act of 1891 ;

The expression “ the limits of supply ” means the existing limits of supply as extended by this Act.

Extension of
limits of
supply.

5.—(1) From and after the passing of this Act the existing limits of supply of the Company shall be extended so as to include the following parishes and places (that is to say) :—

Grove Mentmore Slapton and Wing in the county of Buckingham and Billington Eggington and Stanbridge in the county of Bedford.

(2) The Company shall have and may exercise within the said parishes and places all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as they for the time being have and are subject to within the remainder of their limits of supply :

Provided that the Company may charge for gas supplied by them within the said parishes and places a price exceeding by

not more than sixpence per one thousand cubic feet of gas supplied the price for the time being charged by the Company in the existing limits of supply. A.D. 1914.

6. The Company may for the general purposes of their undertaking purchase and take by agreement (but not otherwise) and may hold in addition to any lands which the Company are authorised to acquire under the powers of the Act of 1891 any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas, or residual products or for the storage of gas otherwise than in accordance with the provisions of the Act of 1891. Purchase of lands by agreement.

7.—(1) As from the first day of January one thousand nine hundred and fifteen the original stock and the new ordinary stock in the capital of the Company shall by virtue of this Act be consolidated and converted into consolidated ordinary stock of the nominal amount of thirty-seven thousand eight hundred and sixty-three pounds bearing a uniform dividend at the rate of five pounds per centum per annum as follows (that is to say):— Consolidation and conversion of capital.

Twelve thousand one hundred and six pounds ten shillings original stock into twenty-four thousand two hundred and thirteen pounds consolidated ordinary stock:

Nine thousand seven hundred and fifty pounds new ordinary stock into thirteen thousand six hundred and fifty pounds consolidated ordinary stock.

(2) The consolidated ordinary stock shall be divided among and vested in the several persons who on the said first day of January one thousand nine hundred and fifteen are registered on the books of the Company as holders of original stock or new ordinary stock (as the case may be) as follows (that is to say):—

To each holder of original stock for each one hundred pounds of such original stock the sum of two hundred pounds of consolidated ordinary stock;

To each holder of new ordinary stock for each one hundred pounds of such new ordinary stock the sum of one hundred and forty pounds of consolidated ordinary stock;

A.D. 1914. and so in proportion for any less amount than one hundred pounds of original stock or new ordinary stock as the case may be.

(3) As from the said first day of January one thousand nine hundred and fifteen there shall by virtue of this Act be created such a nominal amount of consolidated ordinary stock of the Company as shall be necessary for the purpose of giving effect to the provisions of this section and the amounts of consolidated ordinary stock to which the holders of existing original stock or new ordinary stock respectively become entitled under this section shall be forthwith registered in their respective names in the books of the Company.

(4) Consolidated ordinary stock issued under this section shall be held in the same rights upon the same trusts and subject to the same powers provisions charges and liabilities as those upon or to which the existing original stock or new ordinary stock for which the consolidated ordinary stock is substituted were held or were subject immediately before the said first day of January one thousand nine hundred and fifteen and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such existing original stock or new ordinary stock and trustees executors or administrators or other parties under disability may accept consolidated ordinary stock in substitution for existing original stock or new ordinary stock in the capital of the Company held by them and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with such existing original stock or new ordinary stock.

(5) The Company shall call in the certificates of the stock for which consolidated ordinary stock shall be substituted and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of consolidated ordinary stock for the respective amounts to which those proprietors are under this Act respectively entitled but no proprietor shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof Provided always that until the issue of such new certificates the existing certificates shall

(according to the amounts of consolidated ordinary stock substituted by this Act for the existing original stock or new ordinary stock which they respectively represent) have and possess the same rights and advantages as if they were certificates for those respective amounts of consolidated ordinary stock but if any holder of any existing original stock or new ordinary stock in the Company neglect or omit to send or deliver to the Company his existing certificates for the period of one year after notice in writing sent by registered letter to the address appearing in the shareholders' address book the Company may suspend the payment of any dividend declared or made payable upon or in respect of the consolidated ordinary stock to which such holder is entitled under the provisions of this section until such existing certificates are sent or delivered to the Company or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

A.D. 1914.

(6) All transfers or other dispositions of any of the existing original stock or new ordinary stock shall after the conversion thereof into consolidated ordinary stock and notwithstanding this Act be valid and have due effect given to them respectively as transfers of the amount of consolidated ordinary stock which the original stock or new ordinary stock thereby expressed to be transferred or disposed of represents or which is or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the stock transferred or disposed of had before such conversion and the bequest of or any covenant or provision in any deed or agreement relating to any specific nominal amount of any such existing original stock or new ordinary stock converted by this Act into stock of larger nominal value shall be held to apply to a nominal amount of consolidated ordinary stock equal to that into which such existing original stock or new ordinary stock shall have been converted by virtue of this Act.

(7) Consolidated ordinary stock shall be transferable in amounts of one pound or multiples of one pound and in every case where under the provisions of this section a holder of any existing original stock or new ordinary stock would be entitled to any fractional part of a pound of consolidated ordinary stock the Company shall not be bound to register such fractional part but may at the option of the Company pay to such holder such a sum in cash as shall be equal to the market value of such fractional

A.D. 1914. — part or receive from such holder such a sum in cash as will make up the amount of stock to be vested in him to an integral number of pounds of stock and the amount of consolidated ordinary stock vesting in such holder shall thereupon be reduced or increased accordingly and the directors may from time to time create and issue such additional amount of consolidated ordinary stock as may be requisite for giving effect to the provisions of this subsection.

Power to
Company to
raise addi-
tional
capital.

8. The Company may from time to time raise additional capital not exceeding in the whole ten thousand pounds by the creation and issue of consolidated ordinary stock or new preference stock or wholly or partially by one or more of those modes respectively but such stock shall not vest in the person or corporation accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of ten thousand pounds.

As to autho-
rised capital
unissued on
1st January
1915.

9. Any capital authorised by the Act of 1891 remaining unissued on the first day of January one thousand nine hundred and fifteen and which it is not proposed to issue as preference capital shall be issued as consolidated ordinary stock under this Act.

Profits of
Company
limited.

10. Except as by this Act provided the profits of the Company to be divided among the holders of consolidated ordinary stock in any year shall not exceed the rate of five pounds in respect of every one hundred pounds of such stock (herein-after called "the standard rate of dividend") and the Company shall not attach to any part of the additional capital by this Act authorised to be raised which shall be issued as preference capital a greater rate of dividend than six pounds in respect of every one hundred pounds actually paid up of such capital.

New stock
to be sold by
auction or
tender.

11.—(1) All stock created under the powers of the section of this Act of which the marginal note is "Power to Company to raise additional capital" and all stock which at the passing of this Act the Company shall not have created and issued under the powers of the Act of 1891 shall be issued in accordance with the provisions of this section.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:— A.D. 1914.

- (a) Notice of the intended sale shall be given in writing to the clerk of the district council of every district wholly or partly within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of ordinary and preference stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the directors of the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount

A.D. 1914. — so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner and upon such terms as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective stock.

Application of premium arising on issue of stock.

12. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company Provided that all such sums shall for the purpose of determining the powers of the Company to raise money by borrowing or the amount which the Company may carry to the reserve fund be reckoned as part of the paid-up capital.

Incidents of additional capital.

13. The additional capital by this Act authorised and any capital authorised by the Act of 1891 and remaining unissued on the first day of January one thousand nine hundred and fifteen so far as the same is not issued as preference capital shall form part of the consolidated ordinary stock of the Company and the proprietors of any stock issued under the authority of this Act shall subject to the provisions of this Act be entitled to the same rights as the other holders of the same stock.

Power to borrow in respect of consolidated stock.

14.—(1) The Company may at any time and from time to time after the first day of January one thousand nine hundred and fifteen borrow on mortgage of the undertaking in respect of the existing stock converted by this Act into consolidated stock any sum or sums inclusive of any moneys then borrowed

not exceeding in the whole one-third of the nominal amount of such stock. A.D. 1914.

(2) Section 32 (Power to borrow in respect of original capital) and section 33 (Power to borrow in respect of additional capital) of the Act of 1891 are hereby repealed.

15. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any further sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and of any capital authorised by the Act of 1891 remaining unissued on the first day of January one thousand nine hundred and fifteen and which at the time of borrowing has been raised. But no sum shall be borrowed until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock at the time issued together with the premiums (if any) realised on the sale thereof have been fully paid up. Power to borrow in respect of additional capital.

16. Section 34 (Appointment of receiver) of the Act of 1891 is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under that section. Repealing existing provision as to receiver.

17. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than three thousand pounds in the whole. For appointment of receiver.

18.—(1) The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages and charged upon the undertaking. Notice of the Debenture stock.

A.D. 1914. effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

(2) Section 36 (Debenture stock) of the Act of 1891 is hereby repealed.

Priority of mortgages and debenture stock over other debts.

19. All money to be raised by the Company on mortgage or by debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on their mortgages or debenture stock.

Receipt in case of persons not *sui juris*.

20. If any money is payable to a shareholder stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of money.

21. All money raised under this Act by the Company whether by shares stock debenture stock or borrowing shall be applied only to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Power to create a special purposes fund.

22.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per cent. of the paid-up capital of the Company including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums. A.D. 1914.
—

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which Trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

23. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rate on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year: Application of excess of profits over authorised rate of dividend.

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed one year's dividend at the authorised rate.

24. Where in any year the dividend of the Company on the consolidated ordinary stock of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and (subject to the provisions of this Act as to payments thereout) any reserve or other fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the Power to create a reserve fund.

A.D. 1914. dividend at the authorised rate on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

As to standard price and dividend.

25. Notwithstanding anything contained in the Act of 1891 and subject to the provisions of this Act as from and after the first day of January one thousand nine hundred and fifteen the standard price to be charged by the Company for gas supplied by them within the existing limits of supply to persons who shall burn the same by meter other than a prepayment meter shall be two shillings and tenpence per thousand cubic feet:

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the standard rate of dividend as follows:—

In respect of any year during any part of which the price charged by the Company within the existing limits of supply shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of consolidated ordinary stock and so in proportion for any fraction of one hundred pounds;

And in respect of any year during the whole of which the price charged by the Company in the existing limits of supply shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate of dividend by two shillings and sixpence on every one hundred pounds of consolidated ordinary stock and so in proportion for any fraction of one hundred pounds:

Provided also that if in any year the dividend payable shall be of such amount as to involve the payment of a fractional sum less than one-quarter per centum the Company may defer the payment of such fractional sum until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional sum to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

26.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers through any other kind of meter.

A.D. 1914.

Charge for gas supplied by means of prepayment meters.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing and repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connexion therewith.

(5) For the purpose of this section the expression “prepayment meter” means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

27. As from the first day of January one thousand nine hundred and fifteen section 59 of the Act of 1891 shall be repealed and all gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer Subject to the terms of his appointment any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act either at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied and the Company shall afford to the examiner all reasonable facilities for making any such test.

Pressure of gas.

28.—(1) As from the first day of January one thousand nine hundred and fifteen so much of the provisions of sections 28

Standard calorific power.

A.D. 1914. 29 30 32 33 and 36 of the Gasworks Clauses Act 1871 as relate to the illuminating power of gas shall cease to apply to the Company or in respect of the gas supplied by them and sections 60 61 and 62 of the Act of 1891 shall be and the same are hereby repealed and there shall be substituted a standard of calorific power for the prescribed illuminating power.

(2) The standard calorific power of the gas supplied by the Company in the limits of supply shall be five hundred and forty British thermal units gross per cubic foot (the expression "British thermal units" being used in this Act as meaning British thermal units gross per cubic foot) Provided that the Company shall not be liable to any penalty or proceedings for or in respect of any deficiency in the calorific power of the gas supplied by them except under and in accordance with the express provisions of this Act.

In the event of the calorific power being on any testing ascertained to be below the standard calorific power to an extent exceeding seven-and-one-half per centum the gas examiner shall forthwith give notice thereof to the Company and a second testing shall be made at an interval of not less than one hour from the time of making the first testing and the average of the two testings shall be the ascertained calorific power of the gas supplied by the Company on that day.

(3) The following provisions shall apply with respect to the testing for calorific power of the gas supplied by the Company and to penalties in respect of deficient calorific power of such gas:—

(A) Within one month after the said first day of January one thousand nine hundred and fifteen the Company shall provide and shall thereafter keep and maintain at the testing place at the works of the Company which shall for all the purposes of the Gasworks Clauses Act 1871 be the prescribed testing place apparatus for testing the calorific power of the gas supplied by the Company and such apparatus shall be that which is most suitable for ascertaining and in making the test shall be used in such a manner and under such conditions as to ascertain after any necessary calculations have been made the total heat value of the gas and in the event of any dispute arising as to the apparatus to be used such dispute shall be determined by the Board of Trade:

(B) The gas examiner of the local authority of any district within the limits of supply may test the calorific power of the gas supplied by the Company at the testing place at any time between the hours prescribed by section 29 of the Gasworks Clauses Act 1871: A.D. 1914.

(c) The Company shall not be liable to any forfeiture for defective calorific power where the ascertained calorific power on any day of the gas supplied by them is not below the standard calorific power to an extent exceeding seven-and-one-half per centum but where the ascertained calorific power on any day of such gas is below the standard calorific power to an extent exceeding seven-and-one-half per centum the Company shall be liable to the following forfeitures in respect of any deficiency beyond such last-mentioned margin (that is to say):—

Where the deficiency does not exceed fourteen British thermal units two pounds;

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds;

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds:

(D) The provisions of section 31 of the Gasworks Clauses Act 1871 shall apply to any testing made under this section:

(E) Any penalty under the provisions of this section may be sued for and recovered in manner provided by section 36 of the Gasworks Clauses Act 1871 for the recovery of penalties under that Act.

29. If within one month after the expiration of a period of three years from the first day of January one thousand nine hundred and fifteen or after the expiration of any subsequent period of three years either the Company or any urban or rural district council having jurisdiction within the limits of supply shall desire that the standard calorific power prescribed by the section of this Act of which the marginal note is "Standard calorific power" shall be reduced or increased and shall give to the Company and the other district councils interested and to

Power to Board of Trade to vary standard calorific power.

A.D. 1914. — the Board of Trade notice in writing of such desire it shall be lawful for the Board of Trade after hearing the parties and considering any representations made by any of them by order under the hand of an assistant secretary to reduce or increase the amount of the said standard calorific power and of the deficiency below such standard within which the Company are not to be liable to penalty or forfeiture or either of such amounts to such extent as to the said Board may seem fit and the said Board may by such order make all such modifications of this Act as may be necessary in consequence of any such reduction or increase as aforesaid and may also direct the manner in which the costs charges and expenses of the said parties and of the said Board of and incidental to any such application and any inquiry held by or under the direction of the said Board in connexion therewith shall be borne.

Exemption from penalties in certain cases.

30. No penalty or forfeiture shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Power to supply gas-fittings &c.

31.—(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines meters dynamos stoves ranges pipes and other gas-fittings (in this section referred to as “fittings”) for lighting motive power heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

Engines &c. of Company let on hire

32.—(1) All gas engines apparatus fittings and appliances let by the Company on hire under the provisions of this Act

shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that such gas engines apparatus fittings and appliances have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

A.D. 1914.
—
though fixed
to premises
to remain
property of
Company.

(2) Nothing in this section shall affect the amount of assessment for rating of any premises upon which any gas engines apparatus fittings and appliances are or shall be fixed.

33. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Gas con-
sumers to
give notice
to Company
before
removing.

34. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production manufacture utilisation or distribution of gas or materials used in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention.

Power to
take licences
for use of
patents re-
lating to gas.

35. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Company
may refuse
to supply
gas in cer-
tain cases.

36. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises

Minimum
charge for
gas laid on

A.D. 1914. for which he has at the same time a separate supply of electricity or gas for power or other purposes (not being domestic purposes) the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum. Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises. Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of less than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

As to construction and placing of pipes &c. between mains and meters.

37. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office or offices of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:

(5) When any such pipe or meter as aforesaid has been A.D. 1914.

laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

38. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act or the Act of 1891.

Power to lay pipes in private streets.

39. Subject to the provisions of this Act the Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and

Power to utilise pipes for ancillary purposes.

A.D. 1914. placing repairing altering or removing and protection of such
— mains pipes and culverts.

For protec-
tion of
London and
North West-
ern Railway
Company.

40. The following provisions for the protection of the London and North Western Railway Company (herein-after referred to as "the railway company") shall unless otherwise agreed in writing between the railway company and the Company be in force and have effect:—

In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works upon across over under or in any way affecting the railways of the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to such plans to be submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Company who also shall restore and make good the roads over any such bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations or works or interruption to the passage or conduct of traffic over such railways or at any station thereon And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting or failure of any such mains pipes or works the Company shall make compensation in respect thereof to the railway company:

Any dispute or difference which may arise between the railway company and the Company under the provisions of this section shall be settled by arbitration by an engineer or other fit person to be agreed upon between the railway company and the Company or failing such agreement to be appointed by the President of the Institution of Civil Engineers on the application of the railway company and the Company or either of them

after notice to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the arbitration. A.D. 1914.
—

41.—(1) In the exercise of the powers of the sections of this Act of which the marginal notes respectively are “Power to lay pipes in private streets” and “Power to utilise pipes for ancillary purposes” the Company shall not without the previous consent in writing of the company of proprietors of the Grand Junction Canal (herein-after in this section called “the canal company”) lay or place any main pipe culvert or other work in under through over or across the canal of the canal company or the towing path thereof or other property of the canal company. For protection of Grand Junction Canal Company.

(2) In exercising the powers (other than the powers referred to in the preceding subsection) conferred by this Act within the parishes of Grove and Slapton in the county of Buckingham the Company shall not without the previous consent in writing of the canal company lay or place any main pipe culvert or other work or apparatus (all of which are herein-after in this section included in the expression “work of the Company”) in under through over or across the canal of the canal company or the towing path thereof or other property of the canal company otherwise than in the roadway of a fixed bridge carrying a public road over the same.

(3) No injury to or interference with the structure of any bridge belonging to the canal company or which they are liable to maintain or to or with the canal or other property of the canal company and no interruption to the traffic on the canal or towing path shall be occasioned in the laying placing maintenance repair renewal relaying replacing or enlarging of any work of the Company within the parishes aforesaid.

(4) The canal company may at any time and from time to time alter repair or renew any bridge belonging to the canal company or which they are liable to maintain within the said parishes in over or across which any work of the Company has been laid or placed in the same manner as they might have done if this Act had not been passed and the Company shall upon receiving notice in writing from the canal company so to do at their own cost and to the reasonable satisfaction of the engineer of the canal company alter the position of the said work of the Company or temporarily support the same or take

A.D. 1914. — such other steps in relation to the said work as may be reasonably necessary to enable the canal company to carry out such alteration repair or renewal and the provisions of this section shall apply to the said work in its altered position.

(5) All operations of the Company in relation to the laying placing maintenance repair renewal relaying replacing or enlarging of any work of the Company in over or across any bridge of the canal company or which they are liable to maintain within the said parishes or in or under the approaches thereto so far as maintainable by the canal company shall be carried out under the supervision (if the same be given) and to the reasonable satisfaction of the engineer of the canal company and according to plans approved by him.

(6) Any dispute or difference which may arise between the Company and the canal company with reference to the provisions of this section shall be determined by the arbitration of an engineer or other fit person to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and in other respects the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Power to
require use
of anti-fluc-
tuators for
gas engines.

42. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

Power to
enter pre-
mises and
remove fit-
tings.

43. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus

belonging to the Company and let by them on hire to any former occupier of such premises. A.D. 1914.

44. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Period of error in defective meters.

45. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company.

Notice to discontinue supply of gas.

46. In addition to the powers which the directors may exercise under the Companies Clauses Consolidation Act 1845 they may from time to time determine the remuneration of the secretary of the Company.

Power for directors to determine remuneration of secretary.

47. As from the first day of January one thousand nine hundred and fifteen section 58 (Discounts) of the Act of 1891 shall be and the same is hereby repealed.

Repeal of section 58 of Act of 1891.

48. The Company may contract with any local authority company body or persons supplying gas under Parliamentary powers in any district adjacent to the Company's limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond their limits of supply.

Company may contract with local authorities &c. for supply in bulk.

49.—(1) From and after the first day of January one thousand nine hundred and fifteen every holder of consolidated ordinary stock shall be entitled to one vote and to an additional vote for every complete sum of two hundred pounds of such stock held by him beyond the first two hundred pounds.

Scale of voting.

A.D. 1914.
—

(2) As from the said first day of January one thousand nine hundred and fifteen section 42 (Scale of voting) of the Act of 1891 shall cease to apply in respect of votes at general meetings of the holders of ordinary stock in the capital of the Company.

Altering
qualifica-
tion of
directors.

50. As from the first day of January one thousand nine hundred and fifteen section 44 (Qualification of directors) of the Act of 1891 shall be and is hereby repealed and the qualification of a director of the Company shall be the possession in his own right of consolidated ordinary stock of not less nominal value than two hundred pounds.

Costs of Act.

51. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.